

KEEPING CRIMINALS BEHIND BARS



REFORMUK

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Summary

Britain is Lawless. Under changes made by Labour and the Tories, when someone is sentenced to prison by a judge, they actually serve **only a fraction of their sentence**.

A Reform UK Government will reverse Burnham's soft on crime changes to ensure that dangerous criminals serve the entirety of their prison sentence. We will deport foreign criminals to serve their sentences abroad, rather than on British soil, and rapidly build Nightingale Prisons to create the necessary prison capacity.

Burnham's changes are on top of Shabana Mahmood's policy, which has released **70,000** criminals over the last two years.¹ And now Burnham has decided to make things worse - releasing more dangerous criminals and releasing them faster than ever. Under Burnham's plans, as many as 5,000 dangerous criminals could be released early in the next few months.²

The Tories criticise Labour's changes but built **just 455** net new prison spaces over fourteen years despite importing 6 million people net.³ New prison space equivalent to Labour's early release plans has been held up by environmental and planning disputes, including by the presence of badgers.⁴ Labour has increased prison capacity by just **26** places since coming to power.

Two of PC Harper's killers will become eligible for early release. His widow has called for the Labour Government to 'come to their senses'.⁵

Under a Reform Government foreign criminals will serve their sentences abroad, not on British soil. We will rent prison places in third countries to house them until return agreements are struck with their home countries. We will transfer foreign criminals to serve their sentence at home or in another country freeing up **10,000 prison spaces** and build approximately **12,000 Nightingale prison places** within 18 months to create the prison capacity necessary to end early release.

We will undo the absurdities that this Labour government has sneaked past the public, where criminals only serve one third of their sentence in prison. Criminals sentenced to less than 12 months in prison never see the inside of a cell under Labour's Sentencing Act 2026. More and more offenders are handed suspended sentences, completely undermining the hard work of our police officers, and destroying public trust.

Under a Reform Government, rapists, child abusers, those who committed manslaughter and other violent criminals will not set foot out of prison a day early. Every single one will be made to serve the entirety of their sentence.

Specifically, Reform UK would reverse Burnham's changes by:

- » A Reform Government would not allow early release for serious crimes including murder, serious violent crimes and rape ensuring they serve **the entirety of their sentence**.
- » **Reinstate short sentences** to overturn Labour's attempt to **decriminalise theft and shoplifting** by ending short prison sentences (less than 12 months).
- » Given Labour are trying to release virtually all prisoners after just **one third** of time served, we will ensure other prisoners are **not considered for license or parole** until much later in their sentence.

These changes will apply to anyone sentenced under Labour's soft on crime policies.

Reform UK will build or create an additional 22,000 prison places by 2031 (assuming a 2029 General Election). Of these, 10,000 will be rented overseas and approximately 12,000 rapidly constructed on MoD land. The Government already plans to build an additional 14,000 prison places by 2031, taking the total to **36,000**. Reversing Labour's sentencing changes will lead to demand for 18,000 additional prison places, on top of our pledge of mandatory minimum life sentences for child rapists, which will apply to approximately 500 offenders a year.

Britain is Lawless. Britain needs Reform.

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The Uniparty: Soft on Crime, Soft on the Causes of Crime

One of the Labour government's first acts upon coming to power was Justice Secretary Shabana Mahmood releasing **70,000** criminals from prison. Upon release, these convicts did not leave repentant or reformed. They couldn't believe their luck and celebrated with parties and champagne at the prison gates.⁶

Labour blamed the Tories and this was certainly a uniparty joint enterprise: during 14 years in power, the Conservatives added just **455 net new prison spaces** (despite having committed themselves to adding 10,000 new places).⁷ This was despite importing 12 million people of nationalities with high propensities to commit crime, an embarrassing truth the Labour Government is currently trying to cover up by refusing to release foreign national crime rates.⁸

The Conservatives did not only oversee their own early releases, they also reduced Magistrates sentencing power from 12 months back to 6 months.⁹

Here are just a few horrific examples of people who should still be behind bars:

- » PC Harper was killed in 2019 when he was dragged by a car down a country road as three teenagers fled the scene of a quad bike theft in Berkshire. Two of those responsible for his death are now expected to be released after serving just 7 of 13 years.¹⁰
- » Domestic abuser Daniel Findlay was jailed for 2 years and 10 months for his crimes. He was released early by Labour, and immediately returned to stalking the same victim.¹¹ He is now back in prison.
- » Isaac Donkoh, a drill rapper who was jailed for kidnapping and torturing a 16-year-old boy has been released early by Labour after serving less than half of his 12 year sentence.¹² Two months after leaving prison he mocked the government and released a music video in which he sings 'Now that I'm back, I'm raising the crime rate.'¹³
- » Liam Matthews was sentenced in June 2024 to 22 months for violent disorder. He was released early by Labour. Within hours he killed a 26 year old man.¹⁴
- » Sudesh Amman was sentenced in 2018 to 40 months for terrorist offences. He was released early by the Conservatives. He was placed under covert 24 hour surveillance due to the threat he posed to the public. 10 days later he stabbed two people on the streets of Streatham.¹⁵
- » Usman Khan, the London Bridge Attacker, was convicted of a terrorism offence in 2012. He was released early by the Conservatives in 2018 - having served less than 7 years of a 16 year sentence. In 2019 he went on a stabbing spree at a conference on prisoner rehabilitation. Two people died of their wounds, three more received serious injuries.¹⁶
- » Jordan McSweeney was a serial sexual predator with 28 previous convictions. He was released from prison early in June 2022. Nine days later he murdered a woman in cold blood.¹⁷
- » Khairi Saddallah was jailed in October 2019, having been convicted six times for 15 crimes between 2015 and 2019. He was released early by the Conservatives. 17 days later he killed three people, with three more seriously injured.¹⁸

Overview of Sentencing and Release

Sentencing is incredibly complicated and poorly understood by the public, who are gaslit by politicians making misleading statements about being tough on crime whilst simultaneously softening sentencing practices.¹⁹ Trial judges have to apply incredibly complicated guidelines written by a woke quango (the Sentencing Council) which sought to direct judges to review the lives of offenders from ethnic minority and other backgrounds before deciding on a punishment.²⁰ This is the definition of **two-tier justice**.

Currently, very few prisoners actually serve out the entirety of their sentence in prison. Until recently, the automatic release point for most standard determinate sentences (SDS) was set at 50%, with some more serious sentences attracting a two-thirds release point. In order to free up prison spaces, the “SDS40” scheme was implemented, which allows many prisoners to be released when they have completed just 40% of their sentence.

By way of illustrative example of the complexity that Tory and Labour Governments have created, for somebody charged with assault occasioning actual bodily harm who used a machete, and caused serious physical injury, the court might take a starting point of 2.5 years’ imprisonment.²¹ Ignoring aggravating and mitigating factors, if they have pleaded guilty at the first opportunity, that sentence will be reduced to 20 months. With the 1/3rd release provisions, that would mean they would only have to spend 7 months actually in prison. But if they have spent 14 months on bail with a qualifying electronically monitored curfew (which is entirely possible given trials are currently being listed in some London courts in 2029 and 2030), **they might not spend a single day in prison.**²²

Criminals are not carrying out the sentences that judges think appropriate. The public are being lied to. Requiring prisoners to actually carry out their sentences will increase the demand for prison spaces.

Transferring Foreign National Offenders to Serve Out their Sentences Abroad

Under a Reform UK Government foreign criminals will serve their sentences abroad, **not on British soil**. Within months, a Reform Government will free up **10,000 prison spaces** by removing all Foreign National Offenders (FNOs) from British prisons. **Foreign criminals sentenced to meaningful (i.e. custodial) sentences will serve their sentences in their home country or another country**. Foreign criminals sentenced to non-custodial sentences will simply be deported.

Britain's prison capacity crisis is driven in part by the unacceptable number of foreign criminals in our prisons.²³ There were 10,134 foreign nationals held in custody on 30 June 2026, representing **12% of the total prison population**.²⁴ The cost of FNOs has increased by 50% since 2019 and they now cost the taxpayer **£643m per year**.²⁵

Both the Tories and Labour resorted to early release schemes rather than taking robust steps to reduce the population of FNOs. Three prisons are exclusively used for foreign national offenders: HMP Huntercombe, HMP Maidstone and HMP Morton Hall.²⁶

Even when FNOs are released from prison they are often not deported and those who are very rarely serve the remainder of their sentence in their home country.²⁷

Changes by Labour to the Early Removal Scheme in September 2025 mean that the pre-removal custodial period (the time a foreign criminal spends in prison before they are eligible for deportation to their home country) is now the later date of (a) 30% of the custodial period or (b) 4 years before the normal release point.²⁸ Section 35 of the Sentencing Act 2026 (not yet in force) will reduce this period to nothing (i.e. deportation is possible at any time after sentence).²⁹ This means **FNOs will walk free** in their home country very soon after their conviction, failing victims and creating a two-tier justice system between British national offenders and FNOs.

Returns of FNOs (where they are at liberty on arrival) averaged around 5,500 per year during the period from 2010 to 2019.³⁰ Only around 950 FNOs were removed via Prison Transfer Agreements (where they serve the remainder of their sentence) during the entirety of the period from 2010-2023.³¹

Serving their sentence overseas

A Reform UK Government will routinely deport **all FNOs** sentenced to meaningful custodial sentences to serve the **full remainder of their term** in third countries which offer prison spaces for rental, including El Salvador and Kosovo. On completion of their sentence they will return to their home country and have a lifetime bar on re-entry to the United Kingdom. FNOs receiving non-custodial sentences will simply be deported.

We will remove all legal barriers to transferring FNOs to third country prisons by leaving the European Convention on Human Rights, derogating from or disapplying other international treaty constraints, repealing the Human Rights Act 1998 and enacting our Illegal Migration (Mass Deportation) Bill.

British prison places cost around £57,000 per annum to operate.³² New prison places currently cost £600,000 each to build.³³ El Salvador rents prison places to the United States for \$20,000 per annum.³⁴ Kosovo (not in the EU nor a member of the Council of Europe) rents prison places to Denmark for approximately €70,000 per annum. Even accounting for renting equivalent standard prison places, **it costs half as much to imprison a foreign criminal in El Salvador as it does in Britain**.

We currently spend billions of pounds incarcerating FNOs in the UK. This is due to the dramatic capital and day to day costs of incarcerating foreign nationals in the UK. Savings will be used to put and keep British criminals behind bars.

Ensuring prison conditions meet British standards

Standards in Kosovan prisons are broadly in line with those found in British prisons, with multi-occupancy cells holding 4 prisoners typically measuring at 20m², in line with European standards of 4m² per prisoner in multi-occupancy cells. We will ensure that prisoners exported to foreign prisons are not subject to conditions materially worse than they would expect to find in high security British prisons. Denmark was able to ensure that Kosovan prisons conformed to Danish standards under its deal.³⁶

Similarly, a Reform Government would require in the agreement that rented Salvadoran prison space adhere to British standards on size, lighting, heating, ventilation and fittings, and require daily open air time. These standards may ultimately be different from how the Government of El Salvador chooses to treat Salvadoran nationals in custody.

Rapid Nightingale-Style Prison Build

Reform UK has already committed to **building 12,400 new prison places** on Ministry of Defence land within 18 months of winning the next general election, built using pre-fabricated modules and British Army assistance. This compares to Labour's target of 14,000 prison places by 2031, which represents significant delays for three 'mega-prisons' due to environmental and planning issues.³⁷

The Ministry of Defence manages 341,400 hectares of land within the UK. 1.4% of the UK land mass.³⁸ The Defence Estate Optimisation portfolio currently lists around 30 former barracks and military sites that are no longer required for military use.³⁹

Many of these brownfield sites are suitable for rapid construction of modular prisons, and we will change planning laws as necessary. Prefab cells are made in a factory, driven to site and craned into place, so most of the work is finished before anything arrives, and one design serves every site. Britain has already proved it at every scale: Millsike's precast houseblocks each went up in twelve weeks;⁴⁰ and the first Rapid Deployment Cells at Norwich held prisoners seven months after contracts were signed.⁴¹

Florida has shown the viability of this arrangement. 'Alligator Alcatraz' went up in eight days: off-the-shelf tents and modular units on an airstrip the state already owned, bought under emergency no-bid contracts, with capacity for 3,000 detainees and room to grow to 5,000.⁴² We would put the programme on an emergency footing, build on MoD land, buy standard kit, and thousands of places could exist within months at a fraction of the current cost.

Under the MACA (military aid to the civil authorities) framework, the Secretary of State for Justice can call upon the military where the Ministry of Justice lacks the necessary capability to fulfil an urgent task.⁴³ Utilising the military will bypass one of the major bottlenecks in prison construction - the high level of security clearance required for contractors.

Cost

On the model of HMP Millsike, the newest prison in the country, which operates with around 700 staff for 1,500 places,⁴⁴ the five new prisons will require around **5,800 staff**, of whom around 2,900 will be prison officers.

Staffing the five prisons will cost around **£305m per year** at steady state,^{45,46} and around **£1.4bn over the five-year Parliament**, including one-off recruitment and training.⁴⁷ Capital costs are around **£2.5bn**, at a maximum of £200,000 per place, in line with recent modular prison builds and National Audit Office estimates. The total cost of the programme is around **£5bn over the Parliament**.

Recruitment will begin on day one and run ahead of construction, so that officers are trained and in post as each prison opens; we will give preference to veterans to expedite this process.

Overview of Release on License

There are three principal categories for being released on license, and one supplementary scheme, the Home Detention Curfew (HDC) scheme, available to crimes of a less serious nature to ease pressures on the prison estate.

It should be noted that these do not represent the totality of mitigatory measures, just the statutory ones. Undoubtedly, when the prison estate was running at near max capacity at the end of the last Parliament, a number of cases that otherwise would have been met with a custodial sentence were processed through other routes under judicial discretion. Indeed, judges have been directed by the Court of Appeal to take into account prison overcrowding when deciding whether to suspend a sentence.⁴⁸

A “typical” prisoner would ordinarily have been required to serve half his sentence in prison. The 40% category was first created by the now Home Secretary on 12 July 2024, where she announced that offenders with standard determinate sentences would be eligible for automatic release after just 40% of sentence served. This was billed as an emergency measure, and came into effect in September 2024.

Following the implementation of SDS40, the release points for standard determinate sentences can be summarised as follows:

1. **40% of sentence** - Most standard determinate sentences that do not fit the description of the two below categories.
2. **50% of sentence** - This is the previous standard for early release, and only applied to those categories of offences exempted from the reduction to the new 40% standard for automatic early release. These mainly consist of⁴⁹:
 - a. Offences listed in the Sexual Offences Acts of 1956 and 2003
 - b. Sexual offences listed in schedule 15 to the Criminal Justice Act 2003
 - c. A violent offence listed in schedule 15 of the Criminal Justice Act 2003 where the sentence is 4 years or more
 - d. Breaches of a restraining order, stalking offences including breaches of a stalking protection order under the Protection from Harassment Act 1997/Sentencing Act 2020
 - e. Breach of a Sexual Harm Prevention Order under s.103I of the Sexual Offences Act 2003 or s.354 of the Sentencing Act 2020
 - f. Controlling and coercive behaviour, non-fatal strangulation and suffocation under the Serious Crime Act 2015
 - g. Breach of a non-molestation order in the Family Law Act 1996
 - h. Breach of a Domestic Abuse Protection Order in the Domestic Abuse Act 2021
 - i. Offences under the National Security Act 2023 and the various Official Secrets Acts (1989, 1920, 1911)
 - j. Terrorism and state threat related offences
3. **Two-thirds of sentence** - Even after SDS 40, this category included some serious violent and sexual offences. However following the Sentencing Act 2026, standard determinate sentences that previously attracted automatic release at the two-thirds point will generally attract automatic release at the halfway point instead (subject to specified exclusions).

Furthermore, a 33% category will exist from 2 September (subject to any Government u-turn), under the ‘earned progression’ model. Under this, most SDS sentences are eligible for automatic release after just 33% of the total custodial sentence has been served. If there have been any days added to the sentence for behavioural reasons in prison, these additional days will be served over and above the 33% term, after which they will be eligible for release.

Under this new regime, most crimes previously eligible for release after either 40% or 50% of time served are now eligible for release after just 33% of time served. Serious sexual and

violent crimes listed in Schedule 15 of the Criminal Justice Act 2003 (which were previously only eligible for release after 2/3rds time served) are now eligible for release at 50%.⁵⁰

The Home Detention Curfew scheme

Section 26 of the Sentencing Act 2026 removes the possibility of Home Detention Curfew for adult offenders, leaving it applying only to youth offenders. However, it is still applicable to youth offenders, and serves as the primary method of effectively reducing time served in custody for youth offenders. As it only applies to youth offenders, this is outside the scope of this policy.

Presumption of suspended sentences for sentences under 12 months

Suspended Sentence Orders (SSOs) are typically imposed in cases where the offender would normally be imprisoned, but there are strong mitigating factors, reasons to believe that they would pose a low threat of significant harm to others, and a realistic possibility of rehabilitation in the community.

Previously, SSOs were only available for sentences over 14 days and less than 2 years. Under the Sentencing Act 2026, this was extended to up to 3 years from March 2026.

Additionally, from March the Sentencing Act 2026 introduced a presumption in favour of SSOs where, unless an exclusion or exceptional circumstances applies, any sentence under 12 months will be served as a suspended sentence. The impact assessment that accompanied the Bill estimates that this will decrease the demand for prison places by 1,800 places.

However, the increase in suspended sentences increases demand on the probation service. Hence, the same impact assessment indicated that the net cost for the policy is around £35m⁵¹ per year.

Complete breakdown of the prison discipline system

As of 2026, the prison discipline system (hereafter referred to as ‘adjudications’) has entirely fallen apart. Governors are not able to impose additional days of custody on those that break prison rules, they must instead be referred to an independent adjudicator. This is a District Judge (Magistrates’ Court) who will hear the case, and has the power to impose up to 42 additional days for each offence.

Such is the strain on the prison estate that a tiny minority of these cases result in additional time served. In 2024, there were 162,960 proven offences against prison discipline.⁵² Of these, only 6,738 (4.1%) of cases resulted in additional days imposed. Coincidentally, a total of 162,960 additional days were handed out, an average of 24 days per offence.

The Existing Prison Population

As of 30 June 2026, there were 85,858 prisoners held in the prison estate⁵³ as per quarterly Offender Management Statistics from the MoJ. This Q2 figure represented a 2% decrease on the same period in 2025. In the same period, there were a total of 13,193 licence recalls, representing a 31% increase on the previous year. Additionally, there were a total of 258,332 offenders under probation supervision as of 31 March 2026.

Of these 85,858 prisoners, the remand populations stood at 15,386 (18% of the total), and the sentenced prison population was 70,003 (82%). The non-criminal population was negligible at 469 (<1%).

Of the sentenced population, the MoJ provides a breakdown of the sentence types of offenders. The principal groups of these are:

1. **Standard Determinate Sentences (SDS)** - The most common form of sentence, this is the group affected by Labour's changes to the early release scheme. This group will soon be eligible for automatic release after serving just 33% of their sentence. This group accounts for the balance of the sentenced prisoners excluding the below categories.⁵³ This group accounted for 39,688 prisoners.
2. **Extended Determinate Sentences (EDS)** - This is a form of determinate sentence that is exempted from the automatic early release scheme. Offenders handed an EDS can only be released by parole board review after serving two thirds of the custodial element of their sentences. It also carries an extended licence period post release. This group accounted for 9,697 prisoners.
3. **Indeterminate Sentences** - This includes both life sentences (and whole life orders), and Imprisonment for Public Protection (IPPs). IPPs are a legacy category that have since been abolished for new convictions, with offenders instead receiving an EDS. This group accounted for 8,473 prisoners.
4. **Recall to Custody** - This group consists of people that had been released from prison on licence and have breached their licence conditions, leading to them serving a recall period in custody. This group accounted for 12,145 prisoners.

Given our policy to deport or transfer all FNOs, we strip out FNOs from published prison populations statistics to arrive at a true profile of the resultant prison population:

1. **Standard Determinate Sentences (SDS)** - 35,414 prisoners.
2. **Extended Determinate Sentences (EDS)** - 8,996 prisoners.
3. **Indeterminate Sentences** - 7,501 prisoners.
4. **Recall to Custody** - 11,628 prisoners.

Keeping Dangerous Criminals Behind Bars

We will **abolish early release** for those serious crimes that were previously set at a two-thirds point for early release. These are expanded upon in **the Annex**.

We will also undo Sentencing Act 2026 (SDS 33) and SDS 40 changes to ensure other prisoners are **not considered for license or parole** until much later in their sentence.

Finally, we will **reinstate** short sentences to overturn Labour's policy of ending short prison sentences (less than 12 months).

These changes would apply to anyone sentenced after Labour's soft on crime changes to early release.

In total, this would be overturning a number of changes to the time served threshold for automatic early release instituted between 2022 and today. Namely, these are:

- » The 2024 policy that changed the threshold from 50% to 40% of sentence served for most SDS
- » The 2026 Sentencing Act changes that will further lower the threshold from 40% to 33%
- » The changes in the same Act that will lower the threshold for those convicted of some Serious Crimes (as defined in the Police, Crime, Sentencing and Courts Act 2022 and Schedule 15 of the Criminal Justice Act 2003) from two-thirds to 50% of sentence served
- » Repealing the presumption in favour of SSOs

The impact assessment issued alongside the 2024 measure to reduce SDS50 to SDS40 estimated the impact on prison place demand to be between 4,900 to 6,200 places.⁵⁴ We would consider this to be a static solution to prison place demand, and assume prison place demand to be reversible with regards to early release policy.

The impact assessment for the Sentencing Act 2026 estimated the total impact of its changes to automatic early release to be 3,600 places.⁵⁵ This includes the reduction from SDS40 to SDS33 for most crimes, and the reduction from two-thirds to SDS50 for serious crimes. Whilst these measures are not yet in force, we have included the additional prison space required to overturn them in our calculations on the assumption that the criminal justice system is currently taking informal measures to reduce custodial sentences.

In 2020 and in 2022 the then Conservative Government changed the minimum time served for certain serious crimes to be eligible for automatic early release from one-half to two-thirds. In the accompanying impact assessments they estimated that these changes would increase the demand for prison places by 2,680⁵⁶ (2,000 for the initial increase to two-thirds for sentences over 7 years in the 2020 Order, 680 for the later inclusion of sentences between 4 and 7 years in the 2022 Act.) Given that this 32% increase in time served resulted in a 2,680 increase in prison place demand, the equivalent increase in going from 66% to 100% would be 6,100 places,⁵⁷ *ceteris paribus*.

In total, undoing the 2026 changes to automatic early release will increase demand by 3,600 places; undoing the 2024 changes will increase demand by 6,200 places; abolishing early release entirely for certain serious crimes will increase demand by 6,100 places; reinstating short sentences will increase demand by 1,800 places. **Therefore, we expect this policy to increase prison demand by around 18,000 places.** This will be more than covered by the additional prison capacity created by FNO transfers/deportations and Nightingale prison capacity.

Considerations of the effect on recall population

As of June 2026, the population within the prison estate that are held on recall was 12,145, with 11,628 of these being British nationals. Our proposed changes to automatic release would materially affect the length of time that offenders are on licence post release, and so would significantly reduce this number. The offsetting effect of a reduced recall population is not considered here within our estimates for increased demand on the prison estate so as to be as conservative as possible. This is in line with previous government impact assessments that neglected to consider the offsetting effect of a reduced recall population.

Mandatory minimum sentences for child rapists

We have already announced that we will introduce a mandatory minimum prison sentence of life for child rape (i.e. grooming gang offenders). These will be whole life sentences so offenders will spend the rest of their life in prison without eligibility for parole. Put simply, if paedophiles are in prison, they cannot endanger British women and girls. Reform will ensure they stay there.

We will apply whole life orders to rape of a child under 13 (s.5 Sexual Offences Act 2003) and rape (where the victim is aged 13-15) (s.1 Sexual Offences Act 2003). Longer incarceration for child rapists applies to roughly 500 new offenders per year (or 2,500 individuals across a five-year Parliament).⁵⁸ This has also been incorporated into our prison capacity plans.

Annex - Offences Subject to Two-thirds Release under Previous Provisions

Summary

As previously stated, sentencing and release provisions are unnecessarily complicated and we will seek to simplify them.

In general terms, therefore, our approach is to require offenders who would have previously served two thirds of their sentence in custody, to serve the entirety of their sentence in custody.

These include:

1. Certain very serious violent offences listed in Schedule 15 to the Criminal Justice Act 2003, where the sentence is 4 years or more (e.g. manslaughter);
2. Serious sexual offences that can carry life imprisonment, where the sentence is 4 years or more (e.g. rape);
3. Other serious violent (and some sexual) Schedule 15 offences that can carry life, where the sentence is 7 years or more (e.g. robbery);
4. Various terrorism offences;
5. Extended sentences where the judge finds the offender “dangerous”.

Further detail

The 2020 Order increased the threshold for early release for any offender convicted of an offence within Schedule 15 of the Criminal Justice Act 2003 for which the maximum penalty is life, and which was handed a sentence of over 7 years.

The later Police, Crime, Sentencing and Courts Act 2022 decreased the threshold for a sentence to be subject to two-thirds to a minimum of 4 years (maintaining the requirement that the maximum sentence for the offence is life) for certain offences listed in Schedule 15.

This includes any offence which is specified in any of the following:

- i. An offence specified in the following paragraphs of Part 1 of Schedule 15 to the 2003 act:
 1. Paragraph 1 (Manslaughter)
 2. Paragraph 4 (Soliciting Murder)
 3. Paragraph 6 (Wounding with intent to cause grievous bodily harm)
 4. Paragraph 64 (ancillary offences), so far as it related to an offence listed in paragraph 1, 4 or 6
 5. Paragraph 65 (inchoate offences in relation to murder), or
- ii. An offence that is specified in Part 2 of Schedule 15 (sexual offences) to the 2003 act

For those offences listed in Schedule 15 not listed above, the requirement remains that any offender handed at least a 7 year sentence will not be eligible for early release until they have served two-thirds of their sentence.

This has now been amended by the Sentencing Act 2026, which leaves the definition of relevant offences untouched, but changes the threshold for early release to one half of the sentence served.

We broadly accept and use this definition of serious crimes with respect to our policy to end early release for these offenders. However, we include indecent assault and those child abuse and sexual offences not listed above within our definition of serious offences.

Endnotes

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48. <https://www.judiciary.uk/judgments/r-v-ali/>
49. https://www.legislation.gov.uk/uksi/2024/844/pdfs/uksem_20240844_en_001.pdf
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